Wesley & Abby Cornelius

53.82 Acres More or Less
Section 29, Bogard Township
Daviess County, Indiana

Client:

First Farmers Bank & Trust
101 W. Sycamore Street, 6th Floor
Kokomo, IN 46901

Intended User:

First Farmers Bank & Trust and Agri-Access

Prepared By:

Brian S. Myers
CG40700603
Certifed General

Date of Report:

December 31, 2025

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Executive Summary

Customer:	Wesley & Abby Cornelius	**Value Definition:**	Market value per FIRREA
Date of Report:	December 31, 2025	**Purpose:**	Develop and express an opinion of Market Value
Effective Date:	December 22, 2025		
Inspection Date:	N/A	**Intended Use:**	Establish an opinion of market value of collateral for lending purposes
Rights Appraised:	Fee Simple		

Subject Information

Acres:	53.82 acres	**Property Type:**	Cropland
Township:	Bogard	**Property Land Use:**	Cropland
County/State:	Daviess, Indiana	**Legal Access:**	Yes
Sec/Twp/Range:	29/4N/6W	**Physical Access:**	Adequate
Zoning:	A-1 (Agriculture)	**Exposure Time (days):**	30-120
HBU Conclusion:	Cropland	**Marketing Time (days):**	30-120

Current Ownership/Marketing History:

The subject **is not** currently listed for sale.
The subject **is** currently under contract.
The subject **has not** sold in the past 3 years.

Listing Price:
Contract Price: $726,624
Sale Price:
Sale Date:

Comments: According to the county Assessor's office records; the property has not been transferred or sold in the past three-years prior to the effective date of the appraisal report. Wesley and Abby Cornelius entered into a purchase option agreement with Kenneth Critchlow and Morris Critchlow on May 10, 2025, to purchase the property for $726,624. Buyer has the right to exercise purchase option until September 1, 2026. Buyer is a long-term tenant and has farmed the property for many years. Furthermore, this is a private transaction with no market exposure. Based on other sales in the area this is not considered to be an arm's length transaction.

Value Conclusion

Opinion of Value:	**$1,035,000**		
Allocation of Value		**Allocation of Income/Expenses**	
Land:	$1,035,000	**Gross Income:**	$15,225
Dwellings:	$	**Expenses:**	$2,552
Other Improvements:	$	**Net Income:**	$12,673

Allocations are contributions to the total value and should not be considered conclusions of value for individual components.

Land Use	Acres	$/Acre	Total
Cropland A	18.25	$23,305	$425,307
Cropland B	1.62	$20,974	$33,978
Cropland C	30.88	$18,644	$575,715
Pasture	0.00	$6,991	$00
Woods	0.00	$9,322	$00
Site	0.00	$23,305	$00
Roads/Waste	3.07	$00	$00

Unimproved Property

Improvement	Size	Total

USPAP Requirements

Notice of Use Restriction: This is a Restricted Appraisal Report as defined and permitted by Standards Rule 2-2(b) Uniform Standards of Professional Appraisal Practice (USPAP). It cannot be properly understood without the additional information contained in the work file. Its use is limited to the client named herein and for the specific use stated. Consideration, reliance, or use by anyone other than the recipient specifically referenced in the report and for the specified use is prohibited. The appraiser has established that the client understands the limited utility of this “Restricted Appraisal Report” and has established that a “Restricted Appraisal Report” is suitable for the intended use stated herein.

Specific File Information: The appraiser acknowledges the existence of a work file containing specific file information regarding the appraisal conducted for this subject property. The work file is available and may be inspected upon request by the client, such third parties as may be authorized by due process of law, and duly authorized professional peer review committees.

The appraiser has established that the client understands the limited utility of this “Restricted Appraisal Report” and has established that a “Restricted Appraisal Report” is suitable for the intended use stated herein.

Extent of Process/Scope:

REPORT TYPE: This is a Restricted Appraisal utilizing a model assisted valuation process.

SPECIFIC DATA COLLECTION, CONFIRMATION, AND REPORTING: Factual information about the subject was obtained from various possible sources, including the client, Farm Services Agency, and county public records. Area and Regional information is not included as part of this report. The opinion of highest and best use is developed based on the physical characteristics of the property, the market data and trends, and information obtained from public sources.

COLLECTION AND CONFIRMATION OF SALES DATA: The appraiser is employed by Compeer Financial. Comparable sales data is collected on an ongoing basis by Compeer staff appraisers from public records, realtors, lending officers, bankers, attorneys, or others connected personally with the sale. Prior to submission to the database, sales are confirmed and prices are verified by public records, buyers, sellers, or others involved with the sales transaction. Compeer appraisers have personally viewed and analyzed each sale unless indicated otherwise.

A new public record sales data search was not conducted in conjunction with this appraisal. Sales within the subject market area are used in the appraisal with emphasis on the most recent sales with similar attributes to the subject property. Sales information at times is also collected from other Compeer employees. Most pending and/or non-recorded sales used are recent auction sales attended by the appraiser or sales confirmed by a copy of the sales contract.

The appraisal is completed for the sole and exclusive use of the Client in accordance and conformity with Uniform Standards of Professional Appraisal Practice utilizing an appraiser adjusted model assisted valuation process, and is subject to the Statement of Assumptions and Limiting Conditions contained in this report.

The client is requesting a Restricted Appraisal Report, whereby the data analysis may be completed at the appraiser’s desk without a physical inspection of the subject property. Reliance is placed on one or a combination of sources for economic and physical characteristics that include: owners’ records, county records, AgriData Incorporated, Google Earth Pro, Multiple Listing Services, sale brochures, real estate auctions, historic files, other appraisal reports, and the appraiser's knowledge of the area and the factors that influence real estate values. The analysis includes investigation of physical and economic factors relating to the subject, highest and best use, and the most applicable valuation approaches to determine a credible result.

Statement of Exclusion of Any of the Usual Approaches to Value: The Cost Approach and Income Capitalization Approach are excluded by prior agreement with the client for the scope of this assignment. The Cost Approach typically does not add an independent indication of value and would closely mirror the same sales and mathematics utilized in the Sales Comparison Approach, on bare land or minimally improved properties. The Income Capitalization Approach is not completed due to the difficulty in verification of markets rents. Additionally, this approach is very sensitive to the rental opinion of the subject/sales, expense estimates and the opinion and application of capitalization rates. Value indications can skew in a wide range. An Income Analysis is included, when requested by the client, for internal debt coverage ratio calculations.

Hypothetical Conditions: A hypothetical condition is defined as "A Condition directly related to a specific assignment, which is contrary to what is known by the appraiser to exist on the effective date of the assignment results, but is used for the purpose of analysis." (The Dictionary of Real Estate Appraisal. 6th ed. Chicago, IL: Appraisal Institute, 2015. Print).

The use of a hypothetical condition may affect assignment results.

1) Any sales listed as a Pending Sale or a Contract Sale that have not consummated as of the effective date of the appraisal are considered to be a Hypothetical Condition. In these cases, the appraiser has confirmed the terms of the Pending Sale or Contract Sale through another party prior to it being publicly available.

Extraordinary Assumptions: An extraordinary assumption is defined as "An assumption, directly related to a specific assignment, as of the effective date of the assignment results, which, if found to be false, could alter the appraiser's opinions or conclusions." *(*The Dictionary of Real Estate Appraisal. 6th ed. Chicago, IL: Appraisal Institute, 2015. Print*)*.

The use of an extraordinary assumption may affect assignment results.

None

Sales Comparison Approach

Sale Data	Subject	Sale #1	Sale #2	Sale #3	Sale #4	Sale #5
Grantor		Taylor, Michael & Julie	Taylor, Michael & Julie	Morrison, Lori A.	EMC Family Farm, LLC	McGuire Asset Trust
Grantee		Boyd Leasing, LLC	Holstine, Marvin & Amy	JGSR Trust	Northern Property & Development, LLC	Wagler, Eldon
Source		Multiple	Multiple	Assessor	MLS	Assessor
Date	12/22/2025	6/18/2025	6/18/2025	7/30/2025	9/26/2025	11/17/2025
Eff Size	53.8 Acres	115.9	80.0	20.0	122.3	70.0
Sale Price		$2,318,800	$1,600,000	$300,000	$2,050,000	$1,400,000
Finance Adj		Cash	Cash	Cash	Cash	Cash
CEV Price		$2,318,800	$1,600,000	$300,000	$2,050,000	$1,400,000
Price/Acre		$20,000	$20,000	$15,000	$16,761	$20,000
LAND AND IMPROVEMENT ADJUSTMENTS						
Land Adj		$32	$179	$558	$443	$858
Impvt Adj		$	$	$	$	$
Adj Price		$20,032	$20,179	$15,558	$17,204	$20,858
MARKET CONDITIONS ADJUSTMENTS						
	Months	6	6	5	3	1
	Rate Per Month	0.00%	0.00%	0.00%	0.00%	0.00%
	Market Cond Adj	$	$	$	$	$
OTHER ADJUSTMENTS						
Tract Size $ Adj/Unit		Similar $	Similar $	Inferior $2,334	Similar $	Similar $
Net Adj		$32	$179	$2,892	$443	$858
Adj Price		$20,032	$20,179	$17,892	$17,204	$20,858

Per-unit Indication	$19,250
Subject Acres	53.82
Effective Date	December 22, 2025
Opinion of Value	$1,035,000

APPRAISER COMMENTS: All five sales are recent transactions located in close proximity to the subject property. They are also generally similar to the subject in terms of land mix and topography. All of the sales are being considered and are being given about equal weighting.

Definition of Market Value:

The most probable price which a property should bring in a competitive and open market under all conditions requisite to a fair sale, the buyer and seller each acting prudently and knowledgeably, and assuming the price is not affected by undue stimulus. Implicit in this definition is the consummation of a sale as of a specified date and the passing of title from seller to buyer under conditions whereby;

1. Buyer and seller are typically motivated;
2. Both parties are well informed or well advised, and acting in what they consider their best interests;
3. A reasonable time is allowed for exposure on the open market;
4. Payment is made in terms of cash in United States dollars or in terms of financial arrangements comparable thereto; and
5. The price represents the normal consideration for the property sold unaffected by special or creative financing or sales concessions granted by anyone associated with the sale.

The source of the definition of Market Value for Federally Insured Financial Institutions is: "The Appraisal of Real Estate - 12th Edition", Page 23 per Federal Register, Volume 55, Number 163, August 22, 1990, Pages 34228 and 34229.

All values are expressed in terms of CASH, US DOLLARS.

Assumptions and Limiting Conditions

1) The reported analyses, opinions, and conclusions are developed, and this report has been prepared, in conformity with the Uniform Standards of Professional Appraisal Practice.
2) This appraisal is subject to review for quality control purposes and by professional organizations such as the American Society of Farm Managers and Rural Appraisers (ASFMRA) and/or the Appraisal Institute.
3) All supportive documentation and work papers in the work file are the property of the appraiser. Information found in the work file is not always included in the appraisal report depending on the relevance or sensitivity of this documentation.
4) Although the subject property's land and buildings (if any) have separate value allocations, these values must not be extracted solely without consideration to the entire property appraised. Any value provided in the report applies to the entire property, and any portion or division of the total will invalidate the value opinion, unless such portion or division has been set forth in the report.
5) Although a borrower may receive a copy of this appraisal, the appraisal itself is for the exclusive use of the lender and the specific parties identified in the report as intended users for their evaluation of the property as collateral. The appraiser has not identified any purchaser, borrower or seller as an intended user of the appraisal and no such party should use or rely on this appraisal for any purpose. Such parties are advised to obtain an appraisal from an appraiser of their own choosing if they require an appraisal for their own use. The appraisal report should not serve as the basis for any property purchase decision or any appraisal contingency in a purchase agreement relating to the property.
6) The appraiser is not an environmental expert and is not qualified to verify or detect the presence of hazardous substances by visual inspection or otherwise. The appraiser is not qualified to determine the effect, if any, of known or unknown substances present. Unless otherwise stated, the final value conclusion is based on the subject property being free of hazardous waste contamination, and is specifically assumed that the present and subsequent ownership will exercise due diligence to ensure that the property does not become otherwise contaminated. The appraiser lacks the expertise to assess environmental hazards and accepts no liability for any past, present or future hazard.
7) The value opinion expressed in this report is considered credible only on the effective date of value. The level of credibility diminishes as time moves further from the effective date. As the subject's physical characteristics, the broader market conditions, the general economy, and government laws change over time, the reliability of the conclusions stated in this report decrease.
8) No liability is assumed for the soundness of structural members since structural elements were not tested or studied to determine their structural integrity. The appraiser recommends the client hire an expert in the appropriate discipline.
9) If the client has any concern regarding mechanical, or protective components of the improvements, or the adequacy or quality of sewer, water, or other utilities, the appraiser recommends the client hire an expert in the appropriate discipline.
Additionally, to detect the presence of any insect, termite, or pest infestation, the appraiser recommends the client hire an expert to perform a professional inspection.
10) Unless otherwise stated in the report, potential income, vacancies, and all expenses shown in the Income Analysis (if used) are only opinions based on observations in the market. The subject property's actual income and expenses may vary from what is shown in this report.
11) The subject is appraised on a lien free basis.
12) The appraiser received information from various individuals and public officials.
13) It is assumed that the information provided by others is factual and the results of the report are dependent upon the information received.
14) In compliance with SR 1-2(e) (iv), the appraiser has assumed there are no adverse easements or encroachments that affect value. The appraiser has not performed a title search of the property. The client should review the evidence of title for the property for any adverse instruments that appear of record and review these with the appraiser.

Additional Limiting Conditions

Appraiser Certification

I certify that, to the best of my knowledge and belief:

1. The statements of fact contained in this report are true and correct.
2. The reported analyses, opinions, and conclusions are limited only by the reported assumptions and limiting conditions, and are my personal, impartial, and unbiased professional analysis, opinions, and conclusions.
3. I have no present or prospective interest in the property that is the subject of this report and I have no personal interest with respect to the parties involved.
4. I have performed no services, as an appraiser or in any other capacity, regarding the property that is the subject of this report within the three-year period immediately preceding acceptance of this assignment.
5. I have no bias with respect to the property that is the subject of this report or to the parties involved with this assignment.
6. My engagement in this assignment was not contingent upon developing or reporting predetermined results.
7. My compensation for completing this assignment is not contingent upon the development or reporting of a predetermined value or direction in value that favors the cause of the client, the amount of the value opinion, the attainment of a stipulated result, or the occurrence of a subsequent event directly related to the intended use of this appraisal.
8. My analyses, opinions, and conclusions were developed, and this report has been prepared, in conformity with the *Uniform Standards of Professional Appraisal Practice.*
9. I have not made a personal inspection of the property that is the subject of this report.
10. No one provided significant real property appraisal assistance to the person signing this certification.

A. *Any person or entity that uses or relies on this appraisal and/or the statements and opinions contained herein does so at their own risk. The association expressly disclaims any liability to any and all persons and/or entities, for any and all damages caused by or connected in any way with any such use or reliance on this appraisal and its contents.*

Effective Date of Appraisal: 12/22/2025	**Opinion of Value:** $1,035,000

Appraiser(s):

Brian S. Myers

Name: Brian S. Myers
License#: CG40700603
License Type: Certifed General

Date Signed: December 31, 2025

Addenda

Legal Description

Exhibit A

Tract I - Parcel # 14-06-29-202-010.000-004 (14.42 acres)

A part of the West half of the Northwest quarter of Section 29, Township 4 North, Range 6 West, more particularly described as follows: Beginning at the Southwest corner of the Town of Cornetsville, Indiana, as platted by John F. Myers, now deceased, and running thence East 80 rods, more or less, to the East line of the West half of the Northwest quarter aforesaid, thence South 48 rods, more or less to the Northeast corner of the real estate owned by Samuel Critchlow and Maude Critchlow, husband and wife, in said West half of the Northwest quarter aforesaid, thence West 40 rods, thence North 16 rods, thence West 40 rods to the West line of said Section 29, and thence North 32 rods, more or less, to the place of beginning, containing 20 acres, more or less.

EXCEPTING THEREFROM,

That portion of the Northwest Quarter of the Northwest Quarter of Section 29, Township 4 North, Range 6 West of the Second Principal Meridian lying in Bogard Township, Daviess County, Indiana, being more particularly described as follows:

COMMENCING AT the Northwest corner of Section 29, which is monumented by a magnetic nail, found flush; thence, along the West boundary of said section, South 00 degree 00 minutes 00 seconds East 630.00 feet to magnetic nail, set flush, on the south boundary of the Town of Cornettsville as recorded in Deed Record Y, page 595 in the Office of Recorder of Daviess County, Indiana and being the POINT OF BEGINNING of this description; thence, along said south boundary, South 89 degrees 02 minutes 28 seconds East, passing a 5/8-inch rebar, set flush, bearing a survey cap inscribed "P. S. Gabhart 20200018" at 30.00 feet, 218.63 feet in all to a 5/8-inch rebar, set flush, bearing said Gabhart survey cap; thence South 00 degrees 42 minutes 51 seconds West 183.85 feet to a 5/8-inch rebar, set flush, bearing said Gabhart survey cap; thence South 88 degrees 19 minutes 12 seconds West, passing a 5/8-inch rebar, set flush, bearing said Gabhart survey cap at 186.40 feet, 216.40 feet in all to a magnetic nail, set flush, on the West boundary of Section 29; thence, along said west boundary, North 00 degrees 00 minutes 00 seconds East 193.84 feet to the point of beginning and containing 0.943 acres, more or less. The bearing system of this survey is based upon the West Boundary of Section 29, Township 4 North, Range 6 West being North 00 degrees 00 minutes 00 seconds East (assumed North/South). This description is based upon a survey completed by Landmark Surveying Co., Inc. of Washington, Indiana and certified by Phillip S. Gabhart, RLS 20200018, on September 18, 2003. Said survey is hereby referenced and made a part of this description.

ALSO EXCEPTING THEREFROM,

That portion of the Northwest Quarter of the Northwest Quarter of Section 29, Township 4 North, Range 6 West of the Second Principal Meridian lying in Bogard Township, Daviess County, Indiana, being more particularly described as follows:

COMMENCING AT the Northwest corner of Section 29, which is monumented by a 1-1/4 inch iron pipe set flush with a survey cap inscribed "P.S. Gabhart 20200018"; thence along the West boundary of said section, South 00 degree 00 minutes 00 seconds East 630.02 feet to magnetic nail found flush on the South boundary of the Town of Cornettsville as recorded in Deed Record Y, page 595 in the office of the Recorder of Daviess County, Indiana; thence, along said south boundary, South 89 degrees 02 minutes 28 seconds East, passing a 5/8-inch rebar found flush and bearing said Gabhart survey cap and being the POINT OF BEGINNING of this description; thence, continuing along said south boundary and the East projection thereof, South 89 degrees 02 minutes 28 seconds East 1096.63 feet to a 5/8-inch rebar set flush and bearing said Gabhart survey cap on the East line of the West Half of the Northwest Quarter of the Northwest Quarter of Section 29; thence, along said east line, South 00 degrees 00 minutes 08 seconds West 183.87 feet to a 5/8-inch rebar set flush and bearing said Gabhart survey cap; thence; parallel with the South boundary of the Town of Cornettsville, North 89 degrees 02 minutes 28 seconds West 1098.92 feet to a 5/8-inch rebar found flush and bearing said Gabhart survey cap; thence North 00 degrees 42 minutes 51 seconds East 183.85 feet to the point of beginning and containing 4.633 acres, more or less. The bearing system of this survey is based upon the West Boundary of Section 29, Township 4 North, Range 6 West being South 00 degrees 00 minutes 00 seconds East (assumed North/South). This description is based upon a survey completed by Landmark Surveying Co., Inc. of Washington, Indiana and certified by Phillip S. Gabhart, P.L.S. 20200018, on June 8, 2004. Said survey is hereby referenced and made a part of this description.

(Leaving in Tract I after said exceptions 14.424 acres, more or less.)

Tract II - Parcel # 14-06-29-200-006.000-004 (20 acres)

A part of the West half of the Northwest Quarter of Section 29, Township 4 North, Range 6 West, beginning at a point 40 rods and 20 feet North of the Southeast corner of aforesaid; thence West to the West line of the Northwest quarter; thence North 48 rods; thence East 40 rods; thence South 16 rods; thence East to the East line of the aforesaid; thence South 32 rods to the place of beginning, containing 20 acres, more or less.

Tract III - Parcel # 14-06-29-200-007.000-004 (19.4 acres)

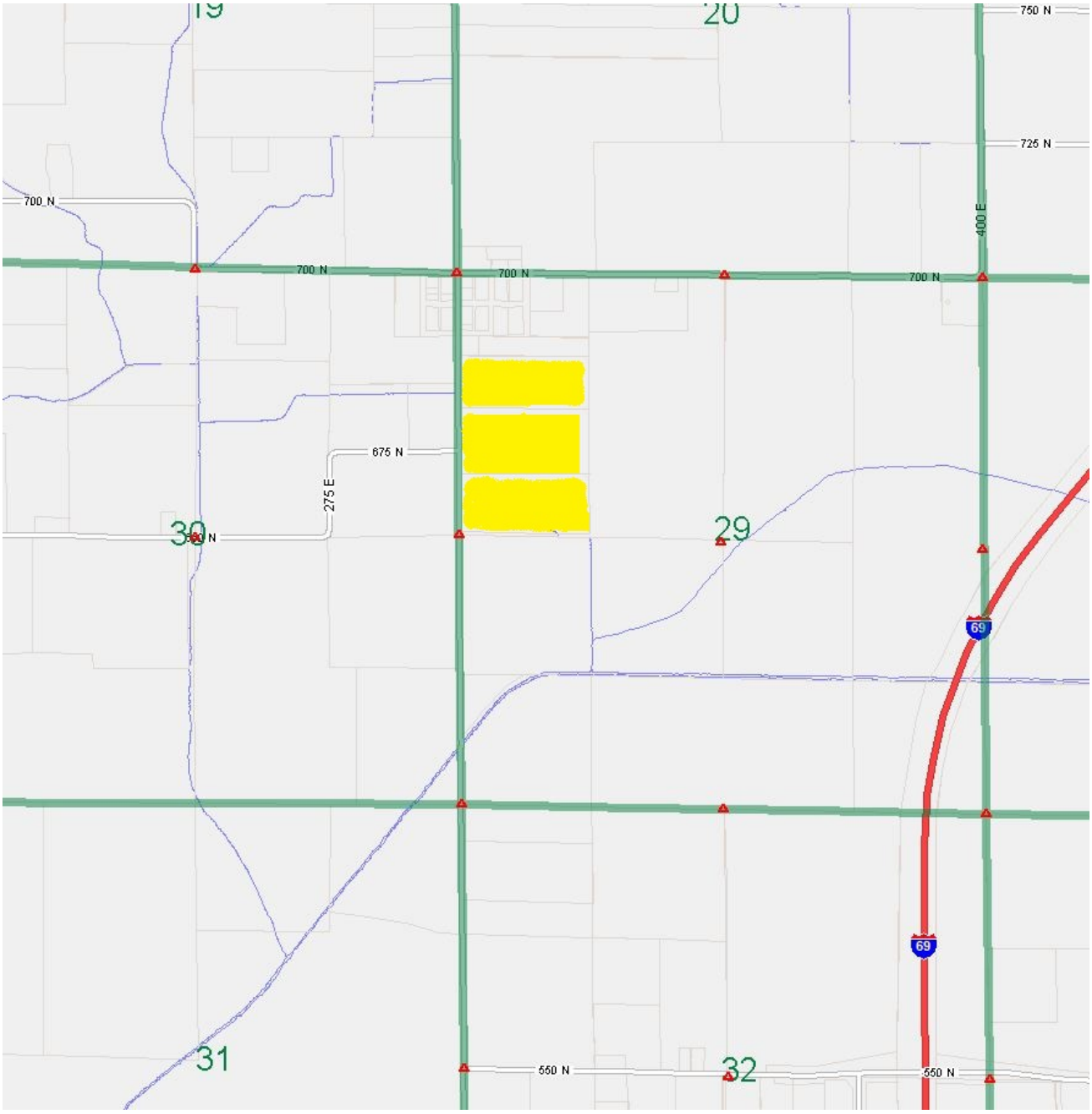
A part of the Southwest quarter of the Northwest Quarter of Section 29, Township 4 North, Range 6 West, described as follows: Beginning 20 feet North of the Southwest corner of said Southwest quarter of the Northwest Quarter, and running thence North 40 rods; thence East to the East line of said above described tract; thence South to a point due East of the place of beginning; thence West to the place-of beginning, containing 20 acres, more or less.

EXCEPTING THEREFROM, a strip of land 20 feet wide off of the South side of the Southwest Quarter of the Northwest Quarter of Section 29, Township 4 North, Range 6 West, described as follows: Commencing at the Southwest corner thereof, and running East 80 rods to the East line thereof; thence North 20 feet; thence West 80 rods to the West line thereof; and thence South 20 feet to the place of beginning, containing .60 acre, more or less.

(Leaving in Tract III after said exception 19.4 acres, more or less.)

(The above Exception is correcting the legal description in that the original acreage should have been 19.4 acres. The above exception to the real estate should have been included as part of the original legal description. Prior deeds have incorrectly stated 20 acres instead of 19.4 acres, which has been wrong for more than 100 years. – per Melissa at the Daviess County Mapping Department)

Plat


19
20
750 N
725 N
700 N
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700 N
700 N
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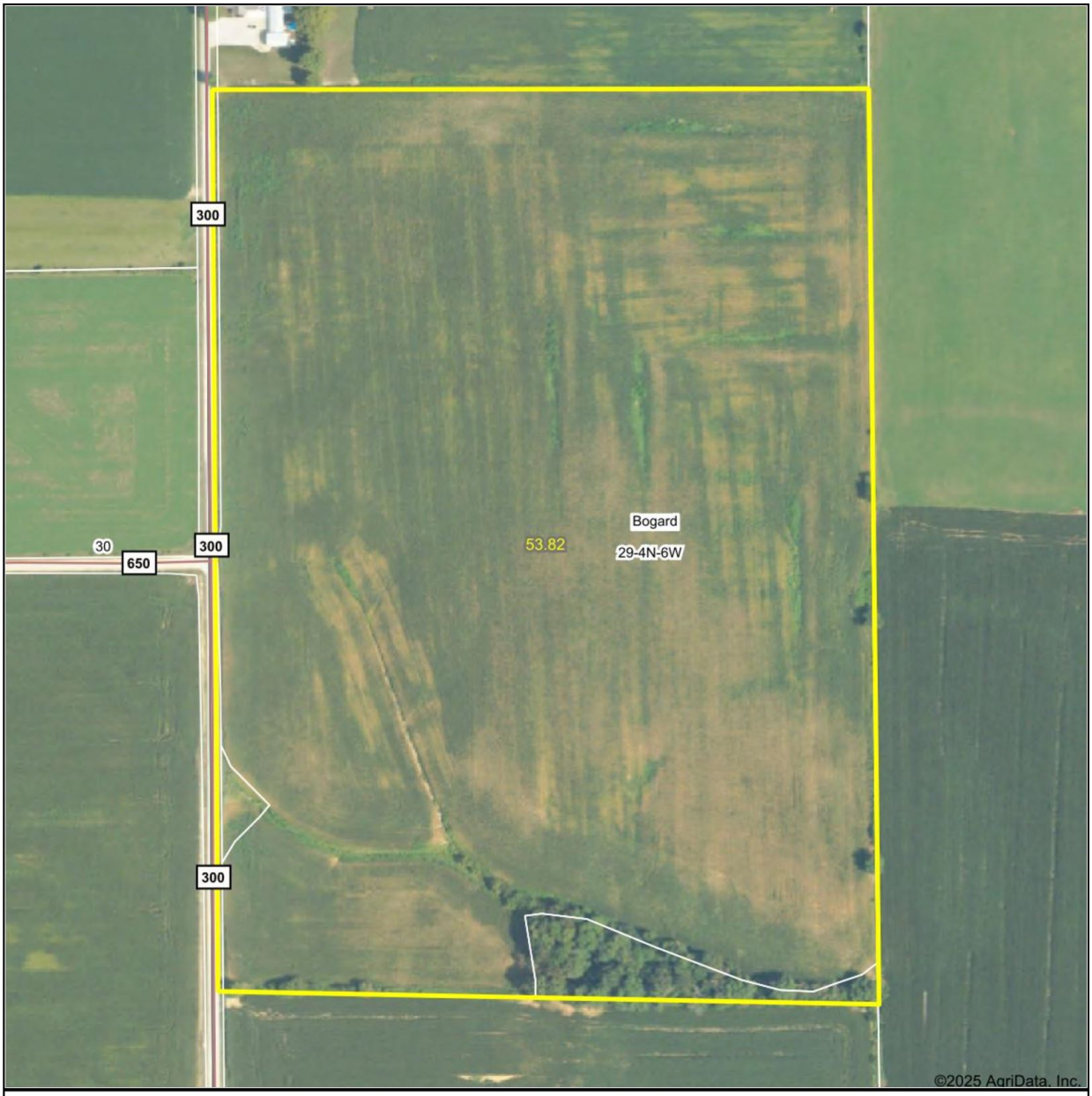
275 E
30
29
69
69
31
550 N
32
550 N

Aerial Image

Aerial Map



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Maps Provided By: surety® CUSTOMIZED ONLINE MAPPING

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Field borders provided by Farm Service Agency as of 5/21/2008.

Map Center: 38.752501, -87.108742

29-4N-6W
Daviess County
Indiana

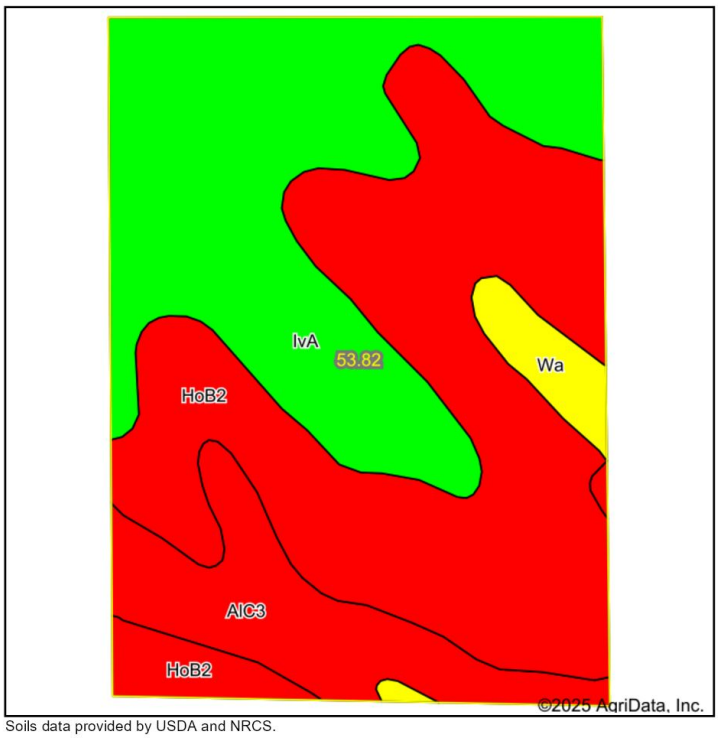
0ft 306ft 613ft

N W E S

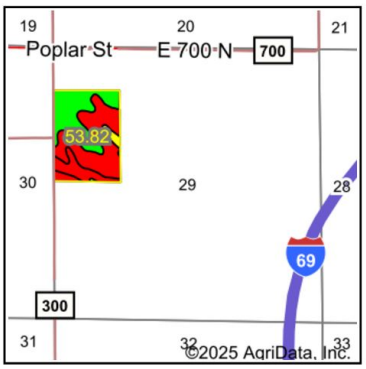
12/24/2025

Soil Map

Soils Map



Soils data provided by USDA and NRCS.



State: **Indiana**
County: **Daviess**
Location: **29-4N-6W**
Township: **Bogard**
Acres: **53.82**
Date: **12/24/2025**

Maps Provided By: surety CUSTOMIZED ONLINE MAPPING
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N W E S

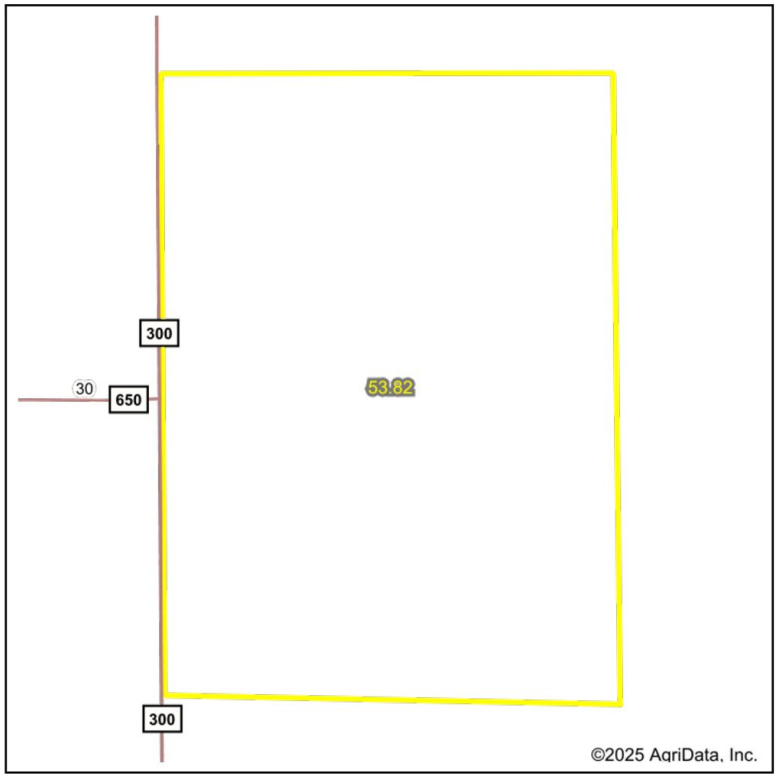
Area Symbol: IN027, Soil Area Version: 29								
Code	Soil Description	Acres	Percent of field	NCCPI Overall Legend	Non-Irr Class *c	Corn Bu	Soybeans Bu	*n NCCPI Overall
HoB2	Hosmer silt loam, 2 to 5 percent slopes, eroded	25.72	47.8%		IIe	116	37	58
IvA	Iva silt loam, 0 to 2 percent slopes	19.48	36.2%		IIw	164	54	87
AlC3	Alford silt loam, 5 to 10 percent slopes, severely eroded	6.85	12.7%		IVe	116	36	67
Wa	Wakeland silt loam, 0 to 2 percent slopes, frequently flooded	1.77	3.3%		IIIw	119	39	79
				Weighted Average	**2.29**	**133.5**	**43.1**	***n 70.3**

*n: The aggregation method is "Weighted Average using all components"
*c: Using Capabilities Class Dominant Condition Aggregation Method

Soils data provided by USDA and NRCS.

FEMA Flood

FEMA Report



Map Center: 38.752501, -87.108742

State: IN Acres: 53.82

County: Daviess Date: 12/24/2025

Location: 29-4N-6W

Township: Bogard

AGRI-ACCESS®

Maps Provided By:

surety® CUSTOMIZED ONLINE MAPPING

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N W E S

Name	Number	County	NFIP Participation	Acres	Percent
			Total	0	0%

Map Change	Date	Case No.	Acres	Percent
No			0	0%

Zone	SubType	Description	Acres	Percent
		Total	0	0%

Panel	Effective Date	Acres	Percent
	Total	0	0%

NOTICE!
It appears that your mapped area does not have digital FEMA information available to us.

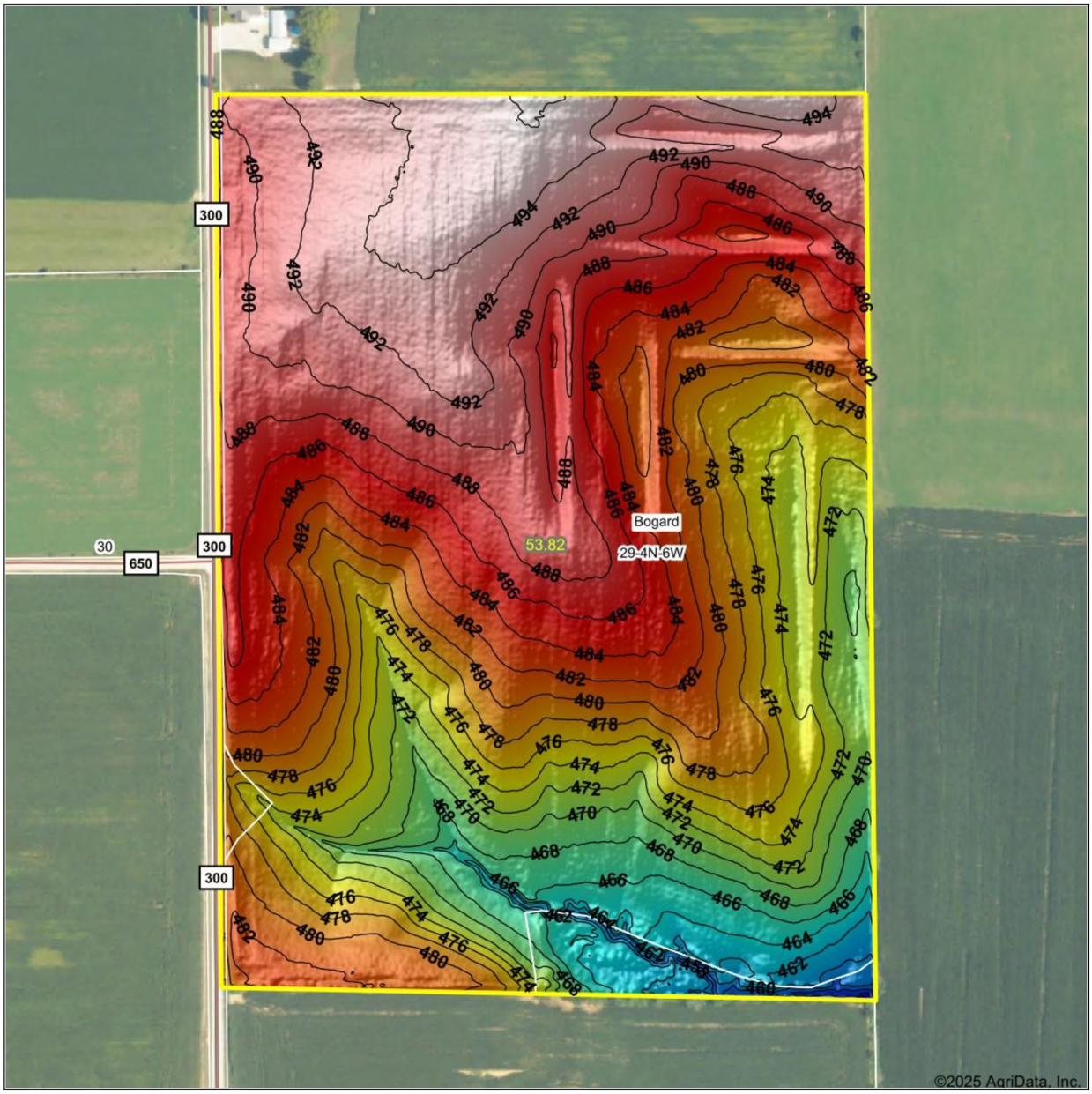
Click Here to search FEMA.gov

for the non-digitized flood maps for this area.

Flood related information provided by FEMA

Topography

Topography Hillshade



Low Elevation High

Source: USGS 1 meter dem
Interval(ft): 2
Min: 452.9
Max: 496.5
Range: 43.6
Average: 481.4
Standard Deviation: 8.96 ft

0ft 309ft 619ft

12/24/2025

29-4N-6W
Daviess County
Indiana

Boundary Center: 38.752501, -87.108742

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Maps Provided By:
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Field borders provided by Farm Service Agency as of 5/21/2008.

Purchase Agreement

OPTION TO PURCHASE

THIS OPTION TO PURCHASE is entered into on this 10 day of May, 2025, by and between **KENNETH CRITCHLOW** and **MORRIS CRITCHLOW**, as tenants in common, (hereafter collectively "Seller") and **WESLEY CORNELIUS** and **ABBY CORNELIUS**, husband and wife, (hereafter collectively "Buyer").

WHEREAS, Seller owns 53.824 acres, more or less, in Daviess County which is identified on Exhibit A attached hereto (hereafter "Real Estate"); and

WHEREAS, Seller and Buyer have reached an agreement upon the terms by which Buyer will be given an option to acquire the Real Estate; and

WHEREAS, the parties desire to reduce their agreement to writing to be binding upon each of them.

NOW, THEREFORE, in consideration of the mutual promises and covenants contained herein, and as part of the transaction by which Buyer is acquiring an additional 20 acres from Seller by a Real Estate Purchase and Sale Agreement dated this date, the parties agree as follows:

1. **Real Estate**. This Option to Purchase covers the real estate described in the first recital. This Option shall include all of the coal, oil, gas and other minerals in and under the Real Estate.

2. **Consideration for the Option**. Buyer shall pay Seller Ten Thousand Dollars ($10,000.00) (hereafter "Earnest Money"), the receipt of which is acknowledged, for this Option. The Earnest Money shall be applied to the purchase price at the closing. If Buyer does not exercise this Option, then the Earnest Money will be forfeited.

3. **Term of the Option to Purchase**. Buyer's right to exercise this option shall commence on the date first written above and shall expire on September 1, 2026 (hereafter "Option Term"). Buyer may exercise the Option at any time during the Option Term as provided in Section 5.

4. **Farm Lease Continues**. Buyer is a Partner in N & K Cornelius Farms Partnership which is currently leasing the Real Estate pursuant to a Land Rental Agreement dated December 22, 2020. If Buyer does not exercise the Option, the Real Estate will continue to be subject to the Land Rental Agreement dated December 22, 2020 by which N & K Cornelius Farms Partnership is leasing the Real Estate through the 2030 crop year and by which N & K Cornelius Farms Partnership has a first right of refusal to acquire the Real Estate. N & K Cornelius Farms Partnership will pay the 2026 rent according to the Land Rental Agreement, which rent will be prorated to the date of closing if Buyer exercises this Option.

5. **Purchase Price**. The purchase price shall be Seven Hundred Twenty-Six Thousand Six Hundred Twenty-Four Dollars ($726,624.00). Upon exercising the Option, Buyer shall pay the purchase price in full at the closing.

6. **Method of Exercise**. This Option may be exercised by Buyer delivering to Kenneth Critchlow, 224 Hillcrest Dr., Madison, IN 47250 and Morris Critchlow, 823 Chandler Rd. Auburn, KY 42206, prior to its expiration, a written notice of exercise of Option.

   a. In the event this option is exercised by Buyer, it shall become a binding agreement on behalf of Seller to sell and on behalf of Buyer to purchase the Real Estate at the purchase price set forth in paragraph 4 above.

7. **Terms of the Purchase Agreement**. In the event this Option is exercised, Seller shall sell the Real Estate to Buyer and Buyer shall purchase the Real Estate from Seller in accordance with the terms in the Real Estate Purchase and Sale Agreement which is attached as Exhibit A.

8. **No Assignment**. The rights granted to the Buyer by this Option to Purchase are personal to the Buyer, and the Buyer cannot assign this Option Agreement or any of the rights granted therein to any other person or entity.

9. **Representation by Brent Stuckey**. Brent Stuckey represents the Buyer in this transaction. Seller has had the opportunity to have Seller's attorney review this Agreement, if Seller so desires.

10. **Binding Upon Successors and Assigns**. This agreement shall be binding upon the successors and assigns of the Seller.

IN WITNESS WHEREOF, the parties have hereunto set their hands and seals the day and year first above written.

SELLER

Kenneth Critchlow	Morris Critchlow

BUYER

Wesley Cornelius	Abby Cornelius

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SELLER

Kenneth Critchlow

Kenneth Critchlow

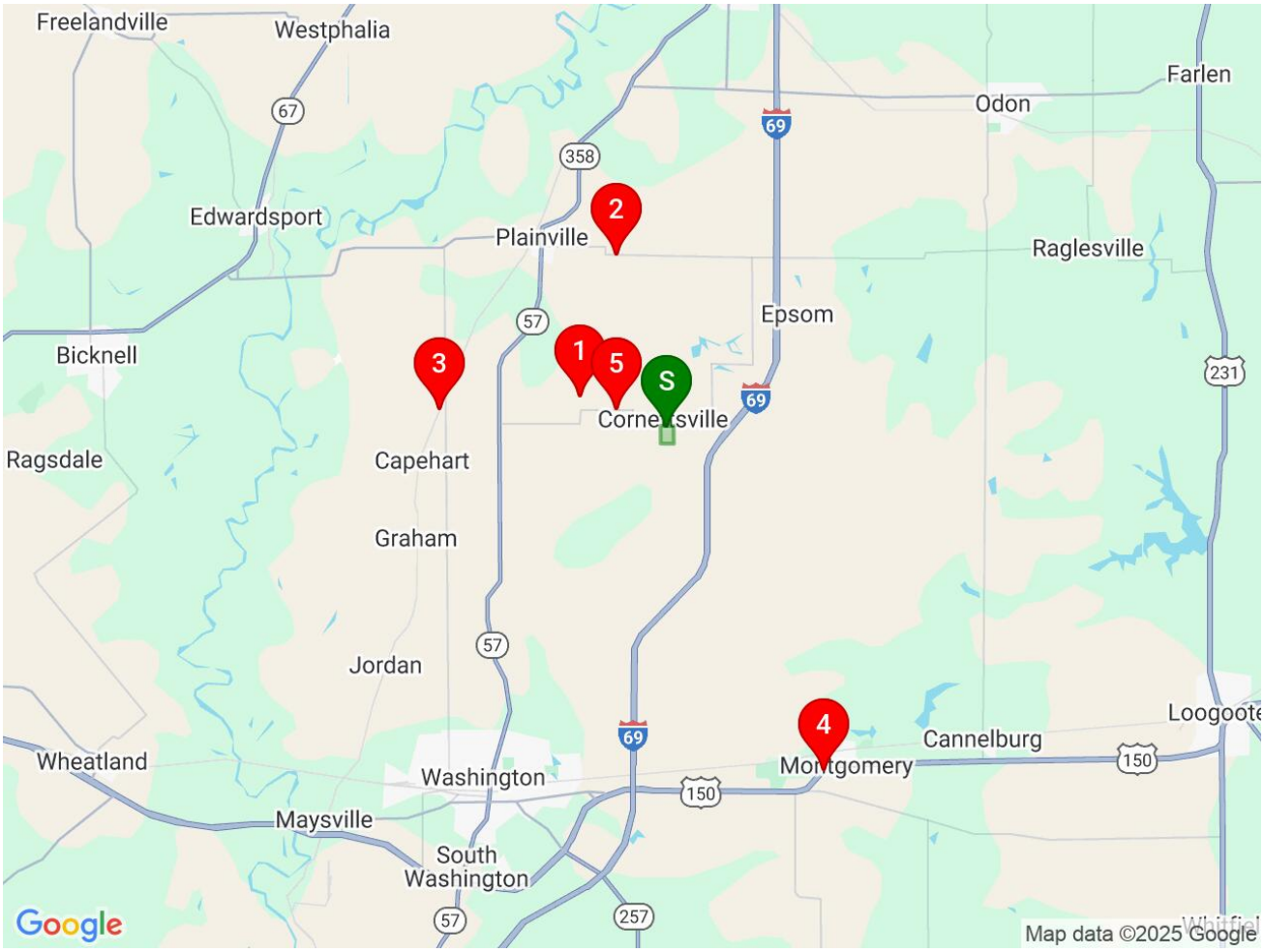
Morris Critchlow

BUYER

Wesley Cornelius

Abby Cornelius

Sales Map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Ragsdale
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South Washington
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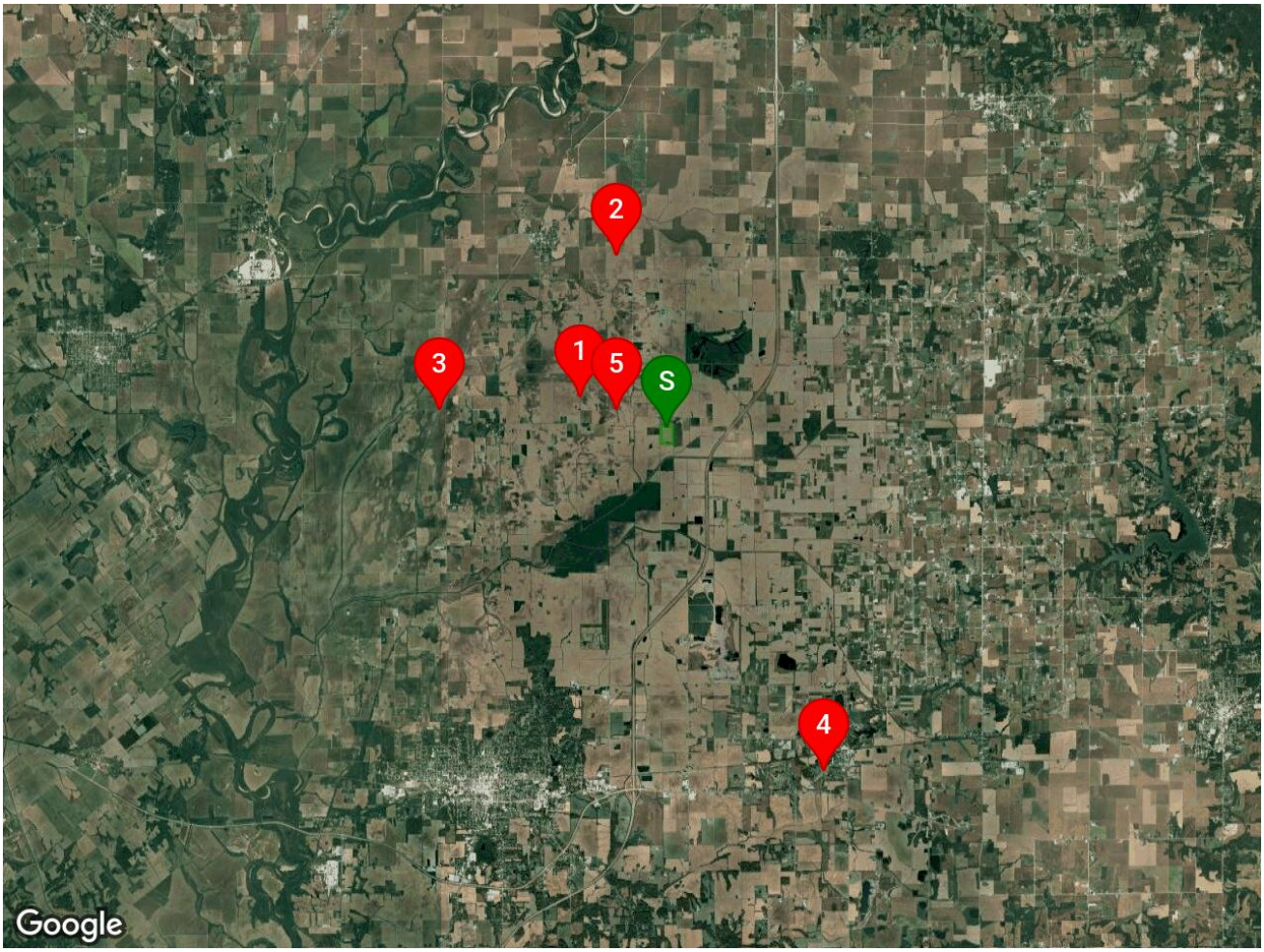
Satellite Map